

STATE OF NORTH CAROLINA

Harnett County

LEE COUNTY
FILED

FEB 08 2018

AT 10:09 ³⁰CLOCK A M
BY SO
CLERK OF SUPERIOR COURT

File No.

Film No.

14CV0 1123

In The General Court Of Justice.

☒ District ☐ Superior Court Division

Name Of Plaintiff(s)

Tiffany Allen

VERSUS

Name Of Defendant(s)

Benjamin Scott Allen

MEMORANDUM OF
JUDGMENT/ORDER

1. The parties to this lawsuit have reached an agreement to settle certain matters as set forth specifically in this memorandum and agree to be legally and mutually bound by the following terms and conditions: (Attach additional pages as necessary)

a. plaintiff and defendant shall have possession of and keep all personal property that is now in their possession

b. Plaintiff and defendant shall keep all bank accounts currently held in their name and shall be responsible any and all debts currently in their name

c. Plaintiff shall execute a Quitclaim deed to defendant and defendant shall make all efforts to remove plaintiff's name from the loan for the marital home, if plaintiff's name is on the loan a defendant shall have six (6) months to refinance the home. ~~is the home is~~

d. Defendant shall pay child support to plaintiff pursuant to the Child Support Worksheet ^{in the Complaint DS 1200.00 per month} ~~when the children are temporarily residing with plaintiff while defendant is deployed, beginning~~

2. A formal judgment/order reflecting the above terms will be prepared by and submitted no later than February 23, 2018 for signature by a judge assigned to hold court in this district.

Fred Webb

NOTE: Parties should be examined on the record as to terms of settlement. See McIntosh v. McIntosh, 74 N.C. App. 554 (1985).

and continuing each month until the deployment ends,

3. The parties stipulate to the following: (If additional sheets are necessary, all parties, attorneys and the judge should sign each sheet.)

- (a) With the signing of this Memorandum by the presiding judge, this Memorandum shall become a judgment/order of the court and shall be deemed entered pursuant to Rule 58 of the North Carolina Rules of Civil Procedure on the date filed with the Clerk;
- (b) the provisions of this Memorandum are fair and reasonable and each party has had ample opportunity to obtain legal advice concerning the legal effect and terms of this Memorandum;
- (c) this Memorandum is enforceable by the contempt powers of the court should any party not comply with its terms;
- (d) the formal judgment or order may be signed by the presiding judge out of term, session, county and district;
- (e) each party is satisfied with the services of the respective attorneys and believes that he/she has received competent advice regarding the signing of this Memorandum;
- (f) signatures of the parties on the formal judgment/order are not necessary;
- (g) the parties waive findings of fact and conclusions of law in the formal judgment/order memorializing this Memorandum; and
- (h) all attorneys shall be released as attorneys of record upon signing of the formal judgment or order by the presiding judge.

Date 2/9/2018	Date 2/9/2018
Signature Of Plaintiff 1 Tiffany Allen	Signature Of Plaintiff's Attorney 1 [Signature]
Date	Date
Signature Of Plaintiff 2	Signature Of Plaintiff's Attorney 2
Date	Date
Signature Of Defendant 1 [Signature]	Signature Of Defendant's Attorney 1 [Signature]
Date	Date
Signature Of Defendant 2	Signature Of Defendant's Attorney 2

Prior to accepting the stipulated agreement of the parties, the undersigned judge read the terms of the above-stipulations and agreements to the parties, and made careful inquiry of them with regards to the voluntary nature of their agreement and their understanding thereof. The court explained to the parties the legal effect of their stipulations and agreements and determined that the parties understood the legal effect and terms of the agreement and stipulations. The parties acknowledged their voluntary execution of the agreements and stipulations, stated that the terms accurately reflected their agreement, and agreed of their own free wills to abide by them.

Date 2-8-2018	Signature Of Presiding Judge Mary Hweels
	Name Of Presiding Judge (Type Or Print)

Name Of Plaintiff(s)

Tiffany Allen

VERSUS

Name Of Defendant(s)

Benjamin Scott Allen

File No.

14CV01123

CONTINUATION PAGE -

MEMORANDUM OF JUDGMENT/ORDER

NOTE: Use this page to continue from the Memorandum Of Judgment/Order in the above-captioned case; all parties, attorneys, and the judge should sign each additional Continuation Page.

e. Plaintiff's counsel shall prepare a court order for division of Defendant's FERS Retirement to be approved by Defendant and the court.

f.

Defendant shall pay all costs and fees to have plaintiff's vehicle, 2011 Optima SE, removed from repossession. Plaintiff shall pay monies to One Main Finance and all monies shall be paid upon defendant receiving his tax return refund for 2017, but HLT March 24th, 2018.

g. During the deployment, Plaintiff and child shall reside with the minor children at her parents residence located at 119 Shumate Lane, Fredericksburg, Va. 22406

Date 2/9/18	Signature Of Plaintiff 1 Tiffany Allen	Date 2/9/18	Signature Of Plaintiff's Attorney 1 C. Allen
Date	Signature Of Plaintiff 2	Date	Signature Of Plaintiff's Attorney 2
Date 2/9/18	Signature Of Defendant 1 [Signature]	Date	Signature Of Defendant's Attorney 1 N/A
Date	Signature Of Defendant 2	Date	Signature Of Defendant's Attorney 2
Date 2-8-18	Name Of Presiding Judge (type or print) Mary Wells	Signature Of Presiding Judge Mary Wells	

